Employer Agreement Form

Service Contract Agreement for Apprenticeship

This Service Contract Agreement is entered into by and between Kent Business College and the Employer. It is designed to facilitate the upskilling of employees through a structured apprenticeship programme.

An Apprenticeship is not limited to young individuals or specific wages, positions, or levels of seniority; it is a valuable pathway that integrates learning with work, applying new knowledge directly to professional practices for the benefit of both individuals and employers.

Declaration: The signatory confirms that they are authorised to act on behalf of the employer and that the information provided within this agreement is accurate and complete to the best of their knowledge. **It is important that this document is not signed by the learner.**

Terms and conditions: By signing this agreement, the employer confirms that they have read, understood, and accepted Kent Business College's Terms and Conditions relating to the delivery of apprenticeship programmes The employer acknowledges that it is their responsibility to review these terms in full before signing this agreement and agrees to comply with the obligations set out therein throughout the full duration of this agreement and the apprenticeship programme. The Terms and Conditions can be accessed and reviewed here: ***Terms and Conditions***

Purpose of Agreement: This agreement is essential to establish a cooperative and engaging relationship with the Employer, aimed at enhancing the skills and competencies of their workforce. It serves as a legal requirement set forth by the Department of Education, enabling learners to qualify for funding.

Note: You can save your progress at any stage and complete the form at your own pace. Once you've entered the required information, simply select "Save" to generate a link, which you can then send to your email inbox for later access.

We appreciate your commitment to advancing education and professional development through this partnership.

Apprenticeship Fund Eligibility Criteria (please refer to learner eligibility section in DfE apprenticeship funding rules document):

- Apprentice must be aged 16 or over
- Must not be in full-time education at the start of the apprenticeship
- Must not use a student loan to pay for the apprenticeship
- Must not be enrolled on another government-funded programme or apprenticeship at the same time
- Must Meet the residency and immigration eligibility requirements set out in "**Annex A" section of the DfE Apprenticeship Funding Rules**, and have the right to live and work in the UK at the start of the programme
- Must have the right to work in England and be in paid employment with an employer with a PAYE scheme in England (the employer must use the Apprenticeship Service account where applicable)
- Must spend at least 50% of their working hours in England over the duration of the apprenticeship

Employer Representative Name *

First Name

Last Name

* Note: The representative must not be the learner

Email *

Phone *

Please enter the phone number without the country code

Organisation Name *

Organisation Address *

Street Address

Country

State/Region/Province

City

Postal / Zip Code

Company Registration Number *

A UK company registration number (CRN) is a unique 8-character code issued by Companies House upon incorporation.

What is the size of your organisation? *

- ◯ Small - 49 Employees or Less
- ◯ 50 Employees or More

Set expiry date for this agreement *

* Note that the apprenticeship programme period refers to the entire duration of the apprenticeship, including the on-programme training phase, any preparation required for the end-point assessment, and the end-point assessment period.

Employer Category and Funding Check

Please select your organisation levy status *

- ◯ Levy Employer - If your Pay Bill (Total Salaries) is above £3 million. The apprenticeship is 100% funded. Once selected, refer to the info below
- ◯ Non Levy Employer - If your Pay Bill (Total Salaries) is below £3 million. Once selected, please refer to the information below for funding details
- ◯ Levy Transfer - Apprenticeship is funded through a transfer of levy funds from another levy employer

Please indicate one of the above

Eligible apprenticeship training and assessment costs will be funded through the Employer's apprenticeship service account where sufficient levy funds are available, up to the applicable funding band maximum. Funding must be managed in accordance with the apprenticeship funding rules that apply to the apprentice's learning start date.

N.B. Where levy funds are insufficient, or If you exceed your apprenticeship levy 'pot' at any point during the apprenticeship, the training will continue under the 'co-funded' model. Under this arrangement, 75% of the training costs will be funded by the Department for Education (DfE), with the remaining 25% payable by the employer.

- **For apprentices aged 24 and under at the start of their apprenticeship,** non-levy employers are entitled to 100% government funding of apprenticeship training and assessment costs (up to the funding band maximum).
- **For apprentices aged 25 and over**, the employer will contribute 5% of the agreed training costs, with the government funding the remaining 95%.

Apprenticeship funding does not cover wages, which remain the responsibility of the employer.

Under the contribution scheme, the Department for Education will cover 95% of the apprenticeship cost. The employer 5% contribution for each programme are as follows:

- **Marketing Executive Level 4:** £300 + VAT
- **Marketing Research Level 4:** £400 + VAT
- **Marketing Manager Level 6:** £450 + VAT
- **Associate Project Manager Level 4**: £350 + VAT
- **Project Controls Technician Level 3:** £1,050 + VAT
- **Project Controls Professional Level 6:** £1,350 + VAT
- **Sales Executive Level 4:** £300 + VAT

Please note that the costs associated with exams, memberships, and professional certifications are not included in the Department for Education funding and are funded by Kent Business College as an added benefit.

If the sending levy employer's transfer funds become insufficient, or the apprenticeship is not fully covered by transfer funds, the receiving employer remains responsible for any required employer co-investment and any costs above the funding band maximum.

*** As the recipient of a Levy Transfer please be aware that the amount you receive per Apprentice will contribute towards the maximum amount of £315,000 of public funding you can receive over a three-year period, as specified in section 36(1) of the Subsidy Control Act 2022. You must ensure that you declare the value to any public authority when receiving any additional subsidy.**
Can you please confirm the following:

*

◯ I am currently in receipt of under £315,000 Subsidy within the last 3-year period.

◯ I am currently in receipt of more than £315,000 Subsidy within the last 3-year period.

Please provide the company name of 'Sending Employer' (employer who is transferring the levy funds): *

☐ **I confirm that I will comply with all applicable Apprenticeship Funding Rules, National Minimum Wage, and National Living Wage requirements, including the following (please refer to the *National Minimum Wage*): ***

- The Apprentice will be paid at least the applicable National Minimum Wage or National Living Wage rate for all hours worked and for any time spent in training that forms part of the apprenticeship, including any End-Point Assessment (EPA) period.
- The Apprentice rate of the National Minimum Wage will only be applied where the apprentice is legally entitled to receive it.
- The Apprentice rate will only be used for apprentices who are either: under the age of 19; or aged 19 or over and in the first year of their apprenticeship.
- Apprentices aged 19 or over who have completed the first year of their apprenticeship will be paid at least the National Minimum Wage or National Living Wage rate applicable to their age.
- Any increases to statutory National Minimum Wage or National Living Wage rates will be implemented from the date they become legally effective.
- The employer will ensure that the apprentice receives the wages to which they are legally entitled from the official apprenticeship start date and will not apply the apprentice rate before that date unless otherwise permitted by law.
- Where an apprentice permanently withdraws from their apprenticeship, the employer will ensure that any ongoing employment arrangements comply with all applicable employment and wage legislation.
- The employer will maintain appropriate payroll, employment, and apprenticeship records to demonstrate compliance with Apprenticeship Funding Rules and National Minimum Wage legislation.
- The employer understands that failure to pay an apprentice the lawful minimum wage may result in HMRC enforcement action, repayment of wage arrears, financial penalties, and may affect apprenticeship funding compliance.

Fixed or Multiple Apprenticeship Programmes: *

◯ Fixed: This agreement applies to a single apprenticeship programme as specified in the programme schedule. Clause 5 shall not apply.

◯ Multiple: This agreement applies to more than one apprenticeship programme as specified in the programme schedules. Clause 5 applies.

Clause 5 - Additional Apprenticeship Programmes outlines the process whereby the Employer may request the development of Bespoke Apprenticeship Programmes (BAP) from the Training Provider. The development is subject to mutual agreement on the nature and content of the requested programme, followed by the execution of the BAP once both parties have agreed on the terms, as detailed in Clause 5.4. Please refer to the ***Terms and Conditions***

The programme schedule can be viewed on the relevant programme page once your preferred programmes has been selected. Full details of the Additional Apprenticeship Programmes are set out in Clause 5 of the Terms and Conditions, available via the link above.

Which apprenticeship programmes you are looking for your organisation? *

- [ ] Associate Project Manager Level 4
- [ ] Project Controls Professional Level 6
- [ ] Marketing Executive Level 4
- [ ] Marketing Manager Level 6

(You can select more than one option if you are considering a multiple agreement or future plans)

How many apprentices should be enrolled?

Both to hire or to upskill

Please select **"Yes"** for the programme(s) you would like your employee(s) to undertake and include in this agreement. Selecting "Yes, but not now" means the programme(s) will not be added to the contract, and you will not be able to access the relevant programme schedule. This option should only be selected if you are considering the programme for future plans.

Associate Project Manager Level 4 Apprenticeship

Our Level 4 Associate Project Manager programme is a comprehensive 14 Months training programme designed to equip your employees with world-class accreditation in Project Management - Project Management Professional (PMP® - PMI):

Programme Route:

- Project Management Professional
- AI in Project Management

Maximum funding band / Cost of programme: £7,000

Do you want to include this programme (Associate Project Manager Level 4) in this agreement? *

Project Controls Professional Level 6 Apprenticeship

Our Project Controls Professional programme is a comprehensive 26 months training programme designed to equip your employees with world-class accreditations and qualifications in project management. It includes three routes, and each learner can select one route with up to six credits. Please note that each credit is equivalent to four months of study within the programme:

Chartered Route Modules (Recognised Assessment for APM ChPP):

- Project Planning and Control - 1 Credit
- Stakeholder Engagement and Communication - 1 Credit
- Risk, Quality and Issue Management - 1 Credit
- Project Management Office - 1 Credit
- AI in Project Management - 1 Credit
- Portfolio Management (APMG) or Earned Value Management (APMG) - 1 Credit

Operational Route Modules:

- Project Management Professional (PMP) - 2 Credits
- AI in Project Management - 1 Credit
- Risk Management (APM) - 1 Credit

Plus two modules selected from:

- Project Planning and Control - 1 Credit
- Earned Value Management (EVM) - 1 Credit
- Scheduling Professional (PMI SP) - 1 Credit

Strategic Route Modules:

- Project Management Professional (PMP) - 2 Credits
- AI in Project Management - 1 Credit
- Risk Management (APM) - 1 Credit

Plus two modules selected from:

- Project Management Office (PMI PMO) - 1 Credit
- Portfolio Management (APMG) - 1 Credit
- Managing Successful Programmes - 1 Credit

Maximum funding band / Cost of programme: £27,000

Do you want to include this programme (Project Controls Professional Level 6) in this agreement? *

Marketing Executive Level 4 Apprenticeship with optional CIM Level 4 Certificate in Professional and Digital Marketing

Our Marketing Executive programme is a comprehensive 13 months training programme designed to equip your employees with world-class accreditations and qualifications in marketing.

Programme Route:

- Marketing Impact and Planning Integrated Campaigns
- Social Media Management
- MarTech

Maximum funding band / Cost of programme: £6,000

** The Department of Education is funding Marketing Executive Level 4 apprenticeship only; Kent Business College funds the cost of the CIM exams and Membership.*

Do you want to include this programme (Marketing Executive Level 4) in this agreement? *

Marketing Manager Level 6 Apprenticeship with optional CIM Diploma Level 6 in Professional and Digital Marketing

Our Marketing Manager programme is a comprehensive 18 months training programme designed to equip your employees with world-class accreditations and qualifications in marketing.

Programme Route:

- Strategy and Planning – Aligning marketing strategies with business goals and commercial objectives.
- Customer Journey Optimisation.
- Commercial Intelligence – Using financial and data insights to drive marketing decisions.
- AI in Marketing.

Maximum funding band / Cost of programme: £9,000

** The Department of Education is funding Marketing Manager Level 6 apprenticeship only; Kent Business College funds the cost of the CIM exams and Membership.*

Do you want to include this programme (Marketing Manager Level 6) in this agreement? *

Programme Schedule

Please select **"Yes"** for the intended programme on the previous page to display the programme schedule here.

Associate Project Manager Level 4 Application

Apprenticeship Occupation Examples:	Assistant Project Manager, Project Manager, Project Support
Apprenticeship Standard/s and Level:	Associate Project Manager Level 4
End Point Assessment Organisation:	NQUAL LTD
Total Price ***(before any RPEL reduction)***	7,000 GBP

Delivery Model

The apprenticeship programme mandates a commitment of 7-8 hours per week dedicated to off-the-job training (Total Minimum Required OTJH: 348 Hours). This includes:

- **Structured Learning:** 2.5 hours of attending online classes.
- **Self-Study:** 3 hours allocated for reading materials and completing multiple-choice questions.
- **Reflective Practice:** 2-3 hours each week devoted to writing a reflective report. This report should detail how the topics covered in the classes are applicable to professional settings.

These hours are flexible and can be adjusted week-to-week depending on the participant's workload. The total of 7-8 hours may also encompass tutoring and other educational activities led by the employer.

Programme Format

The entirety of the programme is delivered online. However, there are optional face-to-face workshops. These workshops are held in one of the following major service areas: London, Kent, Nottingham, Derby, Birmingham, York, and Manchester.

Programme Route

- Project Management Professional
- AI in Project Management

The Programme Schedule

Programme Duration: 14 Months + 5 months EPA
Programme Starting Months: January / May / September

Modules	Qualification	Sessions Hours	Weeks	Months
Project Management Professional	PMP (PMI)	56	28	8
AI in Project Management	Institute of Project Controls (IPC)	28	14	4

* All included exams are optional and fully funded by Kent Business College

Maximum funding band / Cost of programme: £7,000

Funding Eligibility Criteria

The DfE fund is open to individuals across all project management roles and levels of seniority, provided they meet the following conditions:

- Apprentice must be aged 16 or over
- Must not be in full-time education at the start of the apprenticeship
- Must not use a student loan to pay for the apprenticeship
- Must not be enrolled on another government-funded programme or apprenticeship at the same time
- Must Meet the residency and immigration eligibility requirements set out in "**Annex A" section of the DfE Apprenticeship Funding Rules**, and have the right to live and work in the UK at the start of the programme
- Must have the right to work in England and be in paid employment with an employer with a PAYE scheme in England (the employer must use the Apprenticeship Service account where applicable)
- Must spend at least 50% of their working hours in England over the duration of the apprenticeship

☑ **Has the content of the Apprenticeship Standard been shared and the proposed sequence of training (delivery model)?** *

Do you accept this programme as its face value? *

Note: The cost outlined above **is funded in accordance with your levy status** and the applicable funding arrangements detailed on the **"Levy Status"** page. The programme cost and duration may be reduced where relevant prior learning or experience is identified. An individualised learning plan will be discussed and agreed with the learner and line manager during the Apprenticeship Commitment Meeting, with any adjustments made in accordance with the Funding Rules.

Project Controls Professional Level 6 Application

Apprenticeship Occupation Examples:	Head of Projects, Cost engineering lead, Estimating lead, Head of planning, Heads of profession i.e. head of cost engineering, Planning lead, Project controls manager, Risk management lead, Scheduling lead
Apprenticeship Standard/s and Level:	Project Controls Professional (Level 6)
End Point Assessment Organisation:	National Skills Academy Nuclear (NSAN)
Total Price ***(before any RPEL reduction)***	27,000 GBP
Optional Professional Qualifications	Project Planning and Control Foundation and Practitioner (PPC - APMG) Project Risk Management Level 1 and 2 (APM) Application and Preparation for Chartered Project Professional (ChPP - APM) Project Management Office (PMO)

Delivery Model

The apprenticeship programme mandates a commitment of 8-9 hours per week dedicated to off-the-job training (Total Minimum Required OTJH: 835 hours). This includes:

- **Structured Learning:** 2.5 hours of attending online classes.
- **Self-Study:** 3-4 hours allocated for reading materials and completing multiple-choice questions.
- **Writing an Assignment:** 2-3 hours each week devoted to writing a reflective report. This report should detail how the topics covered in the classes are applicable to professional settings.

These hours are flexible and can be adjusted week-to-week depending on the participant's workload. The total of 8-9 hours may also encompass tutoring and other educational activities led by the employer.

Programme Format

The entirety of the programme is delivered online. However, there are optional face-to-face workshops. These workshops are held in one of the following major service areas: London, Kent, Nottingham, Derby, Birmingham, York, and Manchester.

Programme Standard Route:

- Project Planning and Control
- Stakeholder Engagement and Communication
- Risk, Quality and Issue Management
- Project Management Office
- AI in Project Management
- Portfolio Management (APMG) or Earned Value Management (APMG)

The Programme Schedule

Programme Duration: 26 Months + 6 months EPA assessment
Starting Months: January / May / September

Modules	Qualification	Sessions Hours	Weeks	Months
Project Planning and Control (PPC)	APMG	28	14	4
Risk, Issue, and Quality Management	APMG	28	14	4
Stakeholder, Communications, and Reporting Systems	APMG	28	14	4
Project Management Office	PMI	28	14	4
AI in Project Management	Institute of Project Controls (IPC)	28	14	4
Portfolio Management	APMG	28	14	4

* All included exams are optional and fully funded by Kent Business College

Note: As mentioned on the previous page, this programme offers three available routes: Chartered, Operational, and Strategic. The Schedule page currently displays only the Chartered route. During the Apprenticeship Commitment Meeting, the learner, in discussion with their line manager, can agree and tailor their preferred programme route based on their career goals, role requirements, and development needs.

Maximum funding band / Cost of programme: £27,000

Funding Eligibility Criteria

The DfE fund is open to individuals across all project management roles and levels of seniority, provided they meet the following conditions:

- Apprentice must be aged 16 or over
- Must not be in full-time education at the start of the apprenticeship
- Must not use a student loan to pay for the apprenticeship
- Must not be enrolled on another government-funded programme or apprenticeship at the same time
- Must Meet the residency and immigration eligibility requirements set out in "**Annex A" section of the DfE Apprenticeship Funding Rules**, and have the right to live and work in the UK at the start of the programme
- Must have the right to work in England and be in paid employment with an employer with a PAYE scheme in England (the employer must use the Apprenticeship Service account where applicable)
- Must spend at least 50% of their working hours in England over the duration of the apprenticeship

☑ **Has the content of the Apprenticeship Standard been shared and the proposed sequence of training (delivery model)?** *

Do you accept this programme as its face value? *

Note: The cost outlined above **is funded in accordance with your levy status** and the applicable funding arrangements detailed on the **"Levy Status"** page. The programme cost and duration may be reduced where relevant prior learning or experience is identified. An individualised learning plan will be discussed and agreed with the learner and line manager during the Apprenticeship Commitment Meeting, with any adjustments made in accordance with the Funding Rules.

Marketing Executive Level 4 with CIM Certificate Level 4 Application

Apprenticeship Occupation Examples:	Marketing Executive, Marketing Officer, Marketing and Communications Officer, Marketing Specialist, Communications Executive, Communications Specialist
Apprenticeship Standard/s and Level:	Marketing Executive Level 4
End Point Assessment Organisation:	Chartered Institute of Marketing (CIM)
Total Price ***(before any RPEL reduction)***	6,000 GBP
Optional Professional Qualifications	CIM Level 4 Certificate in Professional and Digital Marketing

Delivery Model

The apprenticeship programme mandates a commitment of 8-9 hours per week dedicated to off-the-job training (Total Minimum Required OTJH: 348 Hours). This includes:

- **Structured Learning:** 2.5 hours of attending online classes.
- **Self-Study:** 3-4 hours allocated for reading materials and completing multiple-choice questions.
- **Writing an Assignment:** 2-3 hours each week devoted to writing a reflective report. This report should detail how the topics covered in the classes are applicable to professional settings.

These hours are flexible and can be adjusted week-to-week depending on the participant's workload. The total of 8-9 hours may also encompass tutoring and other educational activities led by the employer.

Programme Format

The entirety of the programme is delivered online. However, there are optional face-to-face workshops. These workshops are held in one of the following major service areas: London, Kent, Nottingham, Derby, Birmingham, York, and Manchester.

The Programme Schedule

Total Programme Duration: 13 Months + 5 months EPA
Starting Months: January / May / September

Module	Sessions Hours	Weeks	Months
Marketing Impact and Planning Integrated Campaigns	40	16	4
Social Media Marketing	30	16	4
MarTech	30	16	4
Total	100	48	12

* All included exams are optional and fully funded by Kent Business College

Maximum funding band / Cost of programme: £6,000

Funding Eligibility Criteria

The DfE fund is open to individuals across all marketing roles and levels of seniority, provided they meet the following conditions:

- Apprentice must be aged 16 or over
- Must not be in full-time education at the start of the apprenticeship
- Must not use a student loan to pay for the apprenticeship
- Must not be enrolled on another government-funded programme or apprenticeship at the same time
- Must Meet the residency and immigration eligibility requirements set out in "**Annex A" section of the DfE Apprenticeship Funding Rules**, and have the right to live and work in the UK at the start of the programme
- Must have the right to work in England and be in paid employment with an employer with a PAYE scheme in England (the employer must use the Apprenticeship Service account where applicable)
- Must spend at least 50% of their working hours in England over the duration of the apprenticeship

☑ **Has the content of the Apprenticeship Standard been shared and the proposed sequence of training (delivery model)? ***

Do you accept this programme as its face value? *

Note: The cost outlined above **is funded in accordance with your levy status** and the applicable funding arrangements detailed on the **"Levy Status"** page. The programme cost and duration may be reduced where relevant prior learning or experience is identified. An individualised learning plan will be discussed and agreed with the learner and line manager during the Apprenticeship Commitment Meeting, with any adjustments made in accordance with the Funding Rules.

Marketing Manager Level 6 with CIM Diploma Level 6 Application

Apprenticeship Occupation Examples:	Marketing Manager, Marketing and Communications Manager, Corporate Communications Manager, Product/Proposition Manager, Insight/Innovations Manager
Apprenticeship Standard/s and Level:	Marketing Manager Level 6
End Point Assessment Organisation:	Chartered Institute of Marketing (CIM)
Total Price ***(before any RPEL reduction)***	9,000 GBP
Optional Professional Qualifications	CIM Level 6 Diploma in Professional and Digital Marketing

Delivery Model

The apprenticeship programme mandates a commitment of 8-9 hours per week dedicated to off-the-job training (Total Minimum Required OTJH: 557). This includes:

- **Structured Learning:** 2.5 hours of attending online classes.
- **Self-Study:** 3-4 hours allocated for reading materials and completing multiple-choice questions.
- **Writing an Assignment:** 2-3 hours each week devoted to writing a reflective report. This report should detail how the topics covered in the classes are applicable to professional settings.

These hours are flexible and can be adjusted week-to-week depending on the participant's workload. The total of 8-9 hours may also encompass tutoring and other educational activities led by the employer.

Programme Format

The entirety of the programme is delivered online. However, there are optional face-to-face workshops. These workshops are held in one of the following major service areas: London, Kent, Nottingham, Derby, Birmingham, York, and Manchester.

The Programme Schedule

Programme Duration: 18 Months + 5 months EPA
Starting Months: January / May / September

Module	Sessions Hours	Weeks	Months
Strategy and Planning	40	16	4
Commercial Intelligence	35	16	4
Customer Journey Optimisation	35	16	4
AI in Marketing	35	16	4
Total	145	64	16

* All included exams are optional and fully funded by Kent Business College

Maximum funding band / Cost of programme: **£9,000**

Funding Eligibility Criteria

The DfE fund is open to individuals across all marketing roles and levels of seniority, provided they meet the following conditions:

- Apprentice must be aged 16 or over
- Must not be in full-time education at the start of the apprenticeship
- Must not use a student loan to pay for the apprenticeship
- Must not be enrolled on another government-funded programme or apprenticeship at the same time
- Must Meet the residency and immigration eligibility requirements set out in "**Annex A" section of the DfE Apprenticeship Funding Rules**, and have the right to live and work in the UK at the start of the programme
- Must have the right to work in England and be in paid employment with an employer with a PAYE scheme in England (the employer must use the Apprenticeship Service account where applicable)
- Must spend at least 50% of their working hours in England over the duration of the apprenticeship

☑ **Has the content of the Apprenticeship Standard been shared and the proposed sequence of training (delivery model)?** *

Do you accept this programme as its face value? *

Note: The cost outlined above **is funded in accordance with your levy status** and the applicable funding arrangements detailed on the **"Levy Status"** page. The programme cost and duration may be reduced where relevant prior learning or experience is identified. An individualised learning plan will be discussed and agreed with the learner and line manager during the Apprenticeship Commitment Meeting, with any adjustments made in accordance with the Funding Rules.

Please complete the employee details below. Ensure that all information provided is accurate and aligns with their proof of residency. You can add up to four learners to this contract. If you wish to add more, please contact us at office@kentbusinesscollege.org.

Learner Name - Learner 1 *

First Name (as in residency proof)

Last Name (as in residency proof)

Learner Phone *

Learner Email *

Programme *

The government has removed the requirement for adult apprentices (aged 19+) to achieve Level 2 Functional Skills English and/or Maths as a mandatory condition of completing their apprenticeship. Functional Skills may still be fully funded and delivered where required or agreed, in accordance with DfE Apprenticeship Funding Rules.

Would you like the current learner to undertake an additional Functional Skills programme? *

◯ I want this learner to undertake fully funded English and/or Maths Functional Skills, with a commitment of additional 2 hours of classes per week.

◯ I do not wish to opt in for Functional Skills for this learner

Line Manager Details

The Line Manager is tasked with the responsibility of signing the training plan and conducting quarterly review meetings. These meetings are crucial to monitor and ensure the learner's satisfactory progress during the apprenticeship. The Line Manager may be the business owner, a department manager, or any designated individual responsible for overseeing the learner's development.

Line Manager Name *

First Name (as in residency proof)

Last Name (as in residency proof)

* Note: The line manager must not be the learner

Phone *

Email *

Do you want to add another learner? *

- ◯ Yes
- ◯ Yes but later, I will send details by email to office@kentbusinesscollege.org
- ◯ No

Learner Name - Learner 2 *

First Name (as in residency proof)

Last Name (as in residency proof)

Learner Phone *

Learner Email *

Programme *

The government has removed the requirement for adult apprentices (aged 19+) to achieve Level 2 Functional Skills English and/or Maths as a mandatory condition of completing their apprenticeship. Functional Skills may still be fully funded and delivered where required or agreed, in accordance with DfE Apprenticeship Funding Rules.

Would you like the current learner to undertake an additional Functional Skills programme? *

- ◯ I want this learner to undertake fully funded English and/or Maths Functional Skills, with a commitment of additional 2 hours of classes per week.
- ◯ I do not wish to opt in for Functional Skills for this learner

Line Manager Details

The Line Manager is tasked with the responsibility of signing the training plan and conducting quarterly review meetings. These meetings are crucial to monitor and ensure the learner's satisfactory progress during the apprenticeship. The Line Manager may be the business owner, a department manager, or any designated individual responsible for overseeing the learner's development.

Line Manager Name *

First Name (as in residency proof)

Last Name(as in residency proof)

* Note: The line manager must not be the learner

Phone *

Email *

Do you want to add another learner? *

- ◯ Yes
- ◯ Yes but later, I will send details by email to office@kentbusinesscollege.org
- ◯ No

Learner Name - Learner 3 *

First Name (as in residency proof)

Last Name (as in residency proof)

Learner Phone *

Learner Email *

Programme *

The government has removed the requirement for adult apprentices (aged 19+) to achieve Level 2 Functional Skills English and/or Maths as a mandatory condition of completing their apprenticeship. Functional Skills may still be fully funded and delivered where required or agreed, in accordance with DfE Apprenticeship Funding Rules.

Would you like the current learner to undertake an additional Functional Skills programme? *

- ◯ I want this learner to undertake fully funded English and/or Maths Functional Skills, with a commitment of additional 2 hours of classes per week.
- ◯ I do not wish to opt in for Functional Skills for this learner

Line Manager Details

The Line Manager is tasked with the responsibility of signing the training plan and conducting quarterly review meetings. These meetings are crucial to monitor and ensure the learner's satisfactory progress during the apprenticeship. The Line Manager may be the business owner, a department manager, or any designated individual responsible for overseeing the learner's development.

Line Manager Name *

First Name (as in residency proof)

Last Name (as in residency proof)

* Note: The line manager must not be the learner

Phone *

Email *

Do you want to add another learner? *

- ◯ Yes
- ◯ Yes but later, I will send details by email to office@kentbusinesscollege.org
- ◯ No

Learner Name - Learner 4 *

First Name (as in residency proof)

Last Name (as in residency proof)

Learner Phone *

Learner Email *

Programme *

The government has removed the requirement for adult apprentices (aged 19+) to achieve Level 2 Functional Skills English and/or Maths as a mandatory condition of completing their apprenticeship. Functional Skills may still be fully funded and delivered where required or agreed, in accordance with DfE Apprenticeship Funding Rules.

Would you like the current learner to undertake an additional Functional Skills programme? *

- ◯ I want this learner to undertake fully funded English and/or Maths Functional Skills, with a commitment of additional 2 hours of classes per week.
- ◯ I do not wish to opt in for Functional Skills for this learner

Line Manager Details

The Line Manager is tasked with the responsibility of signing the training plan and conducting quarterly review meetings. These meetings are crucial to monitor and ensure the learner's satisfactory progress during the apprenticeship. The Line Manager may be the business owner, a department manager, or any designated individual responsible for overseeing the learner's development.

Line Manager Name *

First Name (as in residency proof)

Last Name (as in residency proof)

* Note: The line manager must not be the learner

Phone *

Email *

Do you want to add another learner? *

- ◯ Yes but later, I will send details by email to office@kentbusinesscollege.org
- ◯ No

Terms and Conditions *

Contract Terms - Part 1

1. Definitions and Interpretation

1.1 The definitions and rules of interpretation in this clause apply to this agreement:

Apprentice means a person who works under an Apprenticeship Agreement entered into with the Employer.

Apprentice Assessment Organisation means any organisation on the Register of Apprentice Assessment Organisations which is selected by an Employer and contracted by a Training Provider to carry out End-Point Assessment.

Apprenticeship means the training and (where applicable) end-point assessment for an employee as part of a job with an accompanying skills development programme.

Apprenticeship Agreement means (a) an approved English apprenticeship agreement; or (b) an apprenticeship agreement within the meaning given in section 32 of the Apprenticeship, Skills, Children and Learning Act 2009 as it applies in relation to England by virtue of provision made under section 115(9) of the Deregulation Act 2015.

Apprenticeship Programme means a programme of Training set out in "Apprenticeship Programme Schedule" or agreed pursuant to clause 5.

Apprenticeship Programme Completion Date means the date on which the last Apprentice successfully completes the relevant End-Point Assessment (including following any resits necessary for such successful completion).

Approved Apprenticeship Standard has the meaning given in Section A1 of the Apprenticeships, Skills, Children and Learning Act 2009.

- ☐ I accept the Terms and Conditions.

Terms and Conditions *

Contract Terms - Part 2

3. Training Provider Obligations

3.1 The Training Provider shall deliver the Services to the Employer:
3.1.1 in accordance with and for the duration of the relevant Apprenticeship Programme.
3.1.2 using reasonable skill and care.
3.1.3 in compliance with the Funding Rules.
3.1.4 in compliance with the Law and associated codes and guidance from time to time in force.
3.2 The Training Provider shall enter into written agreements with all relevant:
3.2.1 Subcontractors; and
3.2.2 Apprentice Assessment Organisations. as specified in the relevant Apprenticeship Programme.
3.3 The Training Provider shall monitor the quality of Training delivered by a Subcontractor through such means as it considers appropriate including regular meetings, audits and observations of teaching, learning and assessment.

4. Employer Obligations

4.1 The Employer shall:

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Terms and Conditions *

Contract Terms - Part 3

5. Additional Apprenticeship Programmes

Where indicated in the Contract Particulars, this clause 5 shall have effect.
5.1 The Employer may prior to the Expiry Date request that additional Apprenticeship Programmes be delivered to its employees by the Training Provider in accordance with this clause 5.
5.2 The Training Provider and the Customer shall discuss the nature and content of the Employer's requirement for an additional Apprenticeship Programme and such a discussion shall result in the Employer requesting either:
5.2.1 the provision of one of the Apprenticeship Programmes set out in Apprenticeship Programme Schedule (a Repeat Apprenticeship Programme Request) in accordance with clause 5.3; or
5.2.2 the development of a new Apprenticeship Programme in accordance with clause 5.4 (a Bespoke Apprenticeship Programme Request).
5.3 Repeat Apprenticeship Programmes
5.3.1 The Employer shall notify the Training Provider in a written Repeat Apprenticeship Programme Request which of the Apprenticeship Programmes set out in Apprenticeship Programme Schedule that it wants to be repeated and shall provide the Training Provider with sufficient information (in the opinion of the Training Provider acting reasonably) to allow the Training Provider to prepare an updated Apprenticeship Programme (a UAP)

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Terms and Conditions *

Contract Terms - Part 4

9. Consequences of Termination

9.1 Except as otherwise provided, neither party shall have any further obligation after termination.
9.2 Clauses intended to survive termination (including clauses 1, 4.1.2, 7, 9, 10, 12, 15, 16, 17, and 20) shall remain in force.
9.3 Termination does not affect accrued rights and obligations or the right to claim damages for pre-termination breaches.
9.4 Upon termination or expiry:
9.4.1 The Employer shall immediately pay all Charges due under the Apprenticeship Programmes.
9.4.2 If Charges have been paid and the Training Provider recovers DfE funding for them, such sums shall be reimbursed to the Employer, subject to no other sums being due.
9.4.3 Each party shall return the other's property used in connection with the Services.
9.4.4 Both parties shall cooperate to avoid disadvantaging Apprentices.
9.5 If the Training Provider is no longer a DfE-approved provider:
9.5.1 This agreement shall remain in force for Apprentices who started before delisting, with the Programme Completion Date being the date the last Apprentice completes End-Point Assessment.
9.5.2 The agreement shall terminate for any person due to become an Apprentice after delisting, and the Training Provider shall assist with their

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Terms and Conditions *

Contract Terms - Part 5

16. Intellectual Property

16.1 Each party shall retain ownership of all Intellectual Property Rights in any materials created by that party and used for the delivery of an Apprenticeship Programme (the Project Materials).
16.2 Each party shall make available to the other free of charge and hereby grants to the other party a non-exclusive, non-transferable, royalty free licence to use their Project Materials for the duration of the relevant Apprenticeship Programme.
16.3 Each party shall indemnify the other against all claims, demands, actions, costs, expenses (including legal costs and disbursements on a solicitor and client basis), losses and damages arising from or incurred by reason of any infringement or alleged infringement (including the defence of such alleged infringement) of any Intellectual Property Right in the performance of a party's obligations under this agreement, except to the extent that they have been caused by or contributed to by the indemnified party's acts or omissions.

17. Data Protection and Freedom of Information

17.1 The Employer acknowledges that the Training Provider is subject to the requirements of the Data Protection Act 1998, the Freedom of Information Act 2000, the Environmental Information Regulations 2004 and, from 25 May 2018, the General Data Protection Regulation (Regulation (EU) 2016/679), all as amended from time to time. The Training Provider acknowledges that the Employer is subject to the

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- [x] **By providing your personal information, you consent to Kent Business College collecting, storing, and processing your data in accordance with the General Data Protection Regulation (GDPR). Your information will only be used for the purposes for which it was provided, and will not be shared with third parties without your explicit consent.**

- [x] **I agree to receive marketing communications, updates, and newsletters from Kent Business College by email. I understand I can withdraw my consent and unsubscribe at any time by clicking the "unsubscribe" link in any email or by contacting office@kentbusinesscollege.org**

- [x] **I give consent for Kent Business College to display our company's logo on its website and marketing materials as a representation of our professional relationship. This consent may be withdrawn at any time by providing written notice to office@kentbusinesscollege.org .**

Employer Representative Signature *

This field must be signed by the representative named on the first page only. No other individual is permitted to sign. This confirms that all information provided is accurate and reflects the organisation's agreement.

Date

27-Sep-2026

dd-MMM-yyyy